

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE SENATE

SENATE BILL NO. 1425

BY JUDICIARY AND RULES COMMITTEE

AN ACT

RELATING TO WORKER'S COMPENSATION; AMENDING SECTION 72-451, IDAHO CODE, TO
REVISE A DEFINITION; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFEC-
TIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 72-451, Idaho Code, be, and the same is hereby
amended to read as follows:

72-451. PSYCHOLOGICAL ACCIDENTS AND INJURIES. (1) Psychological in-
juries, disorders or conditions shall not be compensated under this title,
unless the following conditions are met:

(a) Such injuries of any kind or nature emanating from the workplace
shall be compensated only if caused by accident and physical injury as
defined in section 72-102(17)(a) through (c), Idaho Code, or only if
accompanying an occupational disease with resultant physical injury,
except that a psychological mishap or event may constitute an accident
where:

(i) It results in resultant physical injury as long as the psycho-
logical mishap or event meets the other criteria of this section;

(ii) It is readily recognized and identifiable as having occurred
in the workplace; and

(iii) It must be the product of a sudden and extraordinary event;

(b) No compensation shall be paid for such injuries arising from con-
ditions generally inherent in every working situation or from a person-
nel-related action including, but not limited to, disciplinary action,
changes in duty, job evaluation or employment termination;

(c) Such accident and injury must be the predominant cause as compared
to all other causes combined of any consequence for which benefits are
claimed under this section;

(d) Where psychological causes or injuries are recognized by this sec-
tion, such causes or injuries must exist in a real and objective sense;

(e) Any permanent impairment or permanent disability for psychologi-
cal injury recognizable under the Idaho worker's compensation law must
be based on a condition sufficient to constitute a diagnosis using the
terminology and criteria of the American psychiatric association's di-
agnostic and statistical manual of mental disorders, third edition re-
vised, or any successor manual promulgated by the American psychiatric
association, and must be made by a psychologist or psychiatrist duly li-
censed to practice in the jurisdiction in which treatment is rendered;
and

(f) Clear and convincing evidence that the psychological injuries
arose out of and in the course of the employment from an accident or oc-
cupational disease as contemplated in this section is required.

1 (2) Nothing in subsection (1) of this section shall be construed as
 2 allowing compensation for psychological injuries from psychological causes
 3 without accompanying physical injury.

4 (3) The provisions of subsection (1) of this section shall apply to ac-
 5 cidents and injuries occurring on or after July 1, 1994, and to causes of ac-
 6 tion for benefits accruing on or after July 1, 1994, notwithstanding that
 7 the original worker's compensation claim may have occurred prior to July 1,
 8 1994.

9 (4) Notwithstanding subsection (1) of this section, post-traumatic
 10 stress injury suffered by a first responder is a compensable injury or occu-
 11 pational disease when the following conditions are met:

12 (a) The first responder is examined and subsequently diagnosed with
 13 post-traumatic stress injury by a psychologist, a psychiatrist duly li-
 14 censed to practice in the jurisdiction where treatment is rendered, or a
 15 counselor trained in post-traumatic stress injury; and

16 (b) Clear and convincing evidence indicates that the post-traumatic
 17 stress injury was caused by an event or events arising out of and in the
 18 course of the first responder's employment.

19 (5) No compensation shall be paid for such injuries described in sub-
 20 section (4) of this section arising from a personnel-related action includ-
 21 ing, but not limited to, disciplinary action, changes in duty, job evalua-
 22 tion, or employment termination.

23 (6) As used in subsection (4) of this section:

24 (a) "Post-traumatic stress injury" means a disorder that meets the di-
 25 agnostic criteria for post-traumatic stress disorder or post-traumatic
 26 stress injury specified by the American psychiatric association's di-
 27 agnostic and statistical manual of mental disorders, fifth edition re-
 28 vised, or any successor manual promulgated by the American psychiatric
 29 association.

30 (b) "First responder" means:

31 (i) A peace officer as defined in section 19-5101(d), Idaho Code,
 32 when employed by a city, county, or the Idaho state police;

33 (ii) A firefighter as defined in section 59-1302(16), Idaho Code;

34 (iii) A volunteer emergency responder as defined in section
 35 72-102, Idaho Code;

36 (iv) An emergency medical services provider and an ambu-
 37 lance-based clinician certified pursuant to chapter 9, title 46,
 38 Idaho Code; and

39 (v) An emergency communications officer as defined in section
 40 19-5101(f), Idaho Code; and

41 (vi) A coroner or medicolegal death investigator as those terms
 42 are defined in section 31-2811, Idaho Code, and any employee of a
 43 coroner whose duties include and primarily consist of the deter-
 44 mination of cause and manner of death, including death investiga-
 45 tion, forensic pathology and related duties, and supportive ad-
 46 ministrative functions.

47 (7) Subsections (4) through (6) of this section are effective for first
 48 responders with dates of injury or manifestations of occupational disease on
 49 or after July 1, 2019.

1 SECTION 2. An emergency existing therefor, which emergency is hereby
2 declared to exist, this act shall be in full force and effect on and after
3 July 1, 2026.